

24CHCV03854 24CHCV03854

County: los-angeles

Division: Civil Law and Motion

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DEFENDANT'S MOTION

TO QUASH SERVICE OF SUMMONS

Motion filed on February 24, 2026.

MOVING PARTY: Joel Covarrubias (Defendant)

RESPONDING PARTY: Ana Isabel Romero Guzman (Plaintiff)

NOTICE: Ok.

RELIEF REQUESTED: Defendant seeks to quash service of the summons and complaint.

RULING: Granted.

BACKGROUND

On October 22, 2024, Plaintiff filed the Complaint against Defendant. On June 3, 2025, Plaintiff filed a Proof of Service of Summons stating that Defendant was personally served with the summons and complaint on March 1, 2025. On July 15, 2025, Defendant filed a motion challenging that

service. Plaintiff filed an opposition supported by declarations from Ana Josefina Rivas and Plaintiff. On February 24, 2026, the Court denied the motion without prejudice based on defects in Defendant's declaration and proof of service. Defendant filed the present renewed motion that same day. No new, timely opposition or reply was filed.

DISCUSSION

When service of summons is challenged, the plaintiff bears the burden to establish effective service by a preponderance of the evidence. (Summers v. McClanahan (2006) 140 Cal.App.4th 403, 413; Ziller Electronics Lab GmbH v. Superior Court (1988) 206 Cal.App.3d 1222, 1232.) Personal delivery of the summons and complaint constitutes service. (Code Civ. Proc., § 415.10.)

Here, Plaintiff does not carry her burden on the present motion. Defendant declares under penalty of perjury that Ana Josefina Rivas did not serve him with the summons and complaint on March 1, 2025, that he has not been personally served at his home or elsewhere, and that he did not see or encounter a process server at or near his home. (Defendant Decl. ¶¶ 2, 4-5.)

The Proof of Service states that Rivas personally served Defendant on March 1, 2025. However, as the Court previously determined, Rivas was not a registered California process server, and the proof therefore does not receive the presumption under Evidence Code section 647. Plaintiff filed no opposition to the present motion and submitted no declaration from Rivas or other evidence in response to Defendant's sworn denial.

On the present record, the Proof of Service, without the statutory presumption and opposed by Defendant's specific sworn denial, does not establish personal service by a preponderance of the evidence. The motion is therefore granted.

CONCLUSION

Defendant's Motion to Quash Service of Summons is granted. Service of the summons and complaint on Defendant is quashed. Plaintiff may re-attempt valid service of process.